
Master Service Agreement

between

GlobalTrade Logistics Inc.

and

NordHaul Logistics B.V.

Agreement No. NH-MSA-2024-052

Effective Date: April 1, 2024

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1. Parties

This Master Service Agreement (the "Agreement") is entered into as of April 1, 2024 (the "Effective Date") by and between **GlobalTrade Logistics Inc.**, a Delaware corporation with its principal place of business at 400 Harborview Plaza, Suite 1200, Wilmington, Delaware, USA ("GlobalTrade", the "Shipper"), and **NordHaul Logistics B.V.**, a besloten vennootschap organized under the laws of the Netherlands, with its principal place of business at Havenkade 18, 3072 AB Rotterdam, the Netherlands ("NordHaul", the "Carrier"). GlobalTrade and NordHaul are each a "Party" and together the "Parties". This Agreement supersedes all prior agreements, proposals, term sheets, and letters of intent between the Parties relating to its subject matter.

2. Definitions

For the purposes of this Agreement, the following capitalized terms have the meanings set out below. Other capitalized terms are defined where they first appear.

1. **"Business Day"** means any day other than a Saturday, Sunday, or public holiday in the jurisdiction of the delivery destination.
2. **"Scheduled Delivery Date"** means for each shipment, the delivery date promised at tender per its shipping mode (Same Day: one (1) day; First Class: two (2) days; Second Class: four (4) days; Standard Class: six (6) days after tender).
3. **"Late Delivery"** means any shipment delivered after its Scheduled Delivery Date; remedies under Section 6 are computed at lane level on monthly On-Time Delivery Rate shortfall, not per individual shipment.
4. **"On-Time Delivery Rate"** means, for any calendar month, the number of shipments delivered on or before their Scheduled Delivery Date divided by the total number of shipments tendered in that period, expressed as a percentage and rounded to one decimal place.
5. **"Monthly Lane Fees"** means the total transportation fees invoiced by NordHaul for a given Schedule A lane in a given calendar month, excluding surcharges, duties, and taxes; service credits under Section 6 are computed on Monthly Lane Fees.
6. **"Service Levels"** means the performance commitments set out in Section 5 of this Agreement.
7. **"Confidential Information"** means all non-public business, technical, pricing, volume, and operational information disclosed by one Party to the other, whether marked confidential or not, that a reasonable person would understand to be confidential.
8. **"Lane"** means an origin-destination corridor listed in Schedule A, measured separately for Service Level purposes.
9. **"Control Tower"** means NordHaul's 24/7 named-account operations desk in Rotterdam responsible for exception management and reporting.

3. Scope of Services

NordHaul shall provide premium road and short-sea transportation services across GlobalTrade's **Europe** market, comprising scheduled full-truckload and groupage linehaul across Western, Northern, Eastern, and Southern Europe, short-sea connections to the Nordics and the UK, and final-mile delivery coordination, serving all shipping modes with emphasis on First Class and Second Class lanes. Each lane in Schedule A carries the Scheduled Delivery Date corresponding to its shipping mode (Same Day: one day; First Class: two days; Second Class: four days; Standard Class: six days). NordHaul shall operate under a named-account control tower in Rotterdam providing 24/7 exception management, predictive ETA updates, and CO2 emissions reporting per shipment in accordance with the GLEC framework.

4. Term

This Agreement commences on the Effective Date and continues for an initial term of four (4) years (the "Initial Term"). Upon expiry of the Initial Term, this Agreement automatically renews for successive one (1)-year renewal periods (each a "Renewal Term") unless either Party gives written notice of non-renewal at least one hundred eighty (180) days before the end of the then-current term. Rates and Service Levels remain fixed during the Initial Term; thereafter, either Party may request one rate review per Renewal Term, provided that any adjustment exceeding 3% per annum requires mutual written agreement supported by a documented cost index. Sections 2, 6 (with respect to accrued penalties and credits), 8, 11, and the confidentiality obligations survive expiry or termination of this Agreement for a period of three (3) years.

5. Service Levels

5.1 Service Level Framework

NordHaul's performance is measured against the commitments in this Section 5 on a calendar-month basis, **per lane** as defined in Schedule A, using control-tower telematics timestamps reconciled to proof-of-delivery documents. NordHaul is engaged as GlobalTrade's premium European carrier, and the Service Levels in this Section reflect best-in-class network performance.

5.2 On-Time Delivery Commitment

NordHaul commits to an On-Time Delivery Rate of at least **97.5%** on each lane in each calendar month — the highest commitment in GlobalTrade's carrier portfolio. Shipments affected by Force Majeure Events are excluded from measurement. Lanes with fewer than twenty (20) shipments in a month are measured on a rolling three-month basis to avoid small-sample distortion.

5.3 Measurement & Reporting

NordHaul shall publish a continuously updated performance dashboard and deliver a formal monthly scorecard by the third (3rd) Business Day of the following month, per lane and in aggregate, including delay root-cause codes, the Monthly Lane Fees per lane, and the service credits computed under Section 6. GlobalTrade may dispute entries within ten (10) Business Days of scorecard delivery.

6. Service Level Credits for Late Delivery

6.1 Lane-Fee Service Credit Structure

Remedies are computed per lane per calendar month against the Monthly Lane Fees. If the On-Time Delivery Rate on a lane falls below the 97.5% commitment in a month, NordHaul shall issue GlobalTrade a service credit equal to **3% of that lane's Monthly Lane Fees for each commenced 0.5-percentage-point shortfall** below 97.5%.

6.2 Credit Cap

Service credits for any lane in any month are capped at **12% of that lane's Monthly Lane Fees**.

6.3 Worked Example

A lane achieves a 96.4% On-Time Delivery Rate in a month with Monthly Lane Fees of EUR 40,000. The shortfall is 1.1 percentage points, which spans three commenced 0.5-point increments (0.1-0.5, 0.5-1.0, 1.0-1.5), so the credit is $3 \times 3\% = 9\%$ of EUR 40,000 = **EUR 3,600**. A rate of 93.0% would compute to ten increments (30%) but is capped at 12%, i.e. **EUR 4,800**.

6.4 Application of Credits

Credits are itemized on the monthly scorecard and deducted from the next monthly invoice. Credits under this Section 6 are GlobalTrade's exclusive financial remedy for Service Level shortfall as such, without prejudice to Section 10(e) and to cargo loss or damage claims under the CMR Convention.

7. Invoicing & Payment

NordHaul shall invoice GlobalTrade monthly in arrears, in **euros (EUR)**, one invoice per lane plus a consolidated summary, payable by SEPA credit transfer. Undisputed invoices are payable **net thirty (30) days** from the invoice date. GlobalTrade must raise invoice disputes within ten (10) Business Days of receipt; the undisputed portion remains payable when due. Late payments accrue statutory interest in accordance with Directive 2011/7/EU on combating late payment in commercial transactions (European Central Bank reference rate plus eight (8) percentage points). Diesel and road-toll surcharges adjust quarterly per the index mechanism in Schedule C. NordHaul shall not suspend services for non-payment unless undisputed amounts remain unpaid sixty (60) days past due and NordHaul has given fifteen (15) Business Days' written warning.

8. Liability & Indemnification

NordHaul's aggregate liability under this Agreement, whether arising in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed one million five hundred thousand euros (EUR 1,500,000) per contract year. The foregoing cap does not apply to: (a) liability arising from gross negligence, willful misconduct, or fraud; (b) NordHaul's indemnification obligations in respect of third-party claims for bodily injury, death, or damage to tangible property; (c) breaches of confidentiality; or (d) loss of or damage to cargo, which is governed by the CMR Convention for international road carriage and by mandatorily applicable law for short-sea legs. Service credits under Section 6 are GlobalTrade's exclusive financial remedy for Service Level shortfall as such, but do not limit remedies for chronic failure under Section 10(e) or cargo claims under the CMR Convention. Neither Party is liable to the other for indirect, consequential, special, or punitive damages, or for loss of profit, revenue, or goodwill, except to the extent such damages fall within the carve-outs above. NordHaul shall maintain, at its own cost, commercial general liability insurance of at least EUR 5,000,000 per occurrence, CMR liability insurance at the limits of the Convention, and statutory employer liability cover, and shall provide certificates of insurance to GlobalTrade upon request and at each renewal.

9. Force Majeure

Neither Party is liable for any failure or delay in performance caused by events beyond its reasonable control, including natural disasters, severe weather, epidemics, war, terrorism, civil unrest, acts of government, embargoes, port or airport closures, customs stoppages not attributable to documentation errors by the affected Party, national or industry-wide strikes (expressly excluding strikes limited to NordHaul's own workforce), and widespread failures of public infrastructure, utilities, or telecommunications (each a "Force Majeure Event"). The affected Party must notify the other Party in writing within three (3) Business Days of becoming aware of a Force Majeure Event, describing the event, the performance affected, and the estimated duration, and must use commercially reasonable efforts to mitigate its impact and resume performance. Service Level measurement under Section 5 is suspended for shipments demonstrably affected by the Force Majeure Event, and no penalties or credits under Section 6 accrue with respect to such shipments. If a Force Majeure Event continues for more than thirty (30) consecutive days, either Party may terminate this Agreement upon written notice without penalty, and the Shipper shall pay only for services performed and conforming goods delivered up to the effective date of termination.

10. Termination

Either Party may terminate this Agreement: (a) for material breach by the other Party that remains uncured fifteen (15) days after written notice describing the breach in reasonable detail; (b) immediately upon written notice if the other Party becomes insolvent, files or has filed against it a petition in bankruptcy that is not dismissed within sixty (60) days, or makes a general assignment for the benefit of creditors; or (c) as provided in Section 9. GlobalTrade may additionally terminate this Agreement: (d) for convenience on one hundred eighty (180) days' written notice; and (e) for chronic Service Level failure, defined as an On-Time Delivery Rate below 96.0% on any lane in any single calendar month, or below 97.5% on any lane for three (3) consecutive calendar months, on thirty (30) days' written notice without any further cure period. Upon any termination or expiry, NordHaul shall complete all shipments in transit or accepted prior to the effective date of termination in accordance with this Agreement, shall return or destroy all Confidential Information of GlobalTrade, and shall cooperate in good faith in an orderly transition to a successor provider for up to sixty (60) days at the rates then in effect. Termination does not relieve either Party of obligations accrued before the effective date of termination, including penalties and service credits accrued under Section 6.

11. Governing Law & Dispute Resolution

This Agreement is governed by and construed in accordance with the laws of the Netherlands, without regard to its conflict-of-laws principles. The competent courts of Amsterdam, the Netherlands have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement, and each Party irrevocably submits to that jurisdiction. Before initiating any proceeding, the Parties shall escalate the dispute first to their respective account managers and, failing resolution within fifteen (15) Business Days, to a senior executive of each Party; only if the dispute remains unresolved thirty (30) days after escalation to executives may a proceeding be initiated. Nothing in this Section prevents either Party from seeking interim injunctive relief to protect its Confidential Information or intellectual property.

12. Miscellaneous

This Agreement, together with its Schedules and any executed amendments, constitutes the entire agreement between the Parties with respect to its subject matter. Amendments must be in writing and signed by authorized representatives of both Parties. Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or in connection with a merger, acquisition, or sale of substantially all of its assets, with written notice to the other Party. NordHaul shall not subcontract any lane representing more than 10% of monthly volume without GlobalTrade's prior written approval, and remains fully liable for the acts and omissions of any approved subcontractor as if they were its own. All notices must be in writing and delivered to the addresses stated in Section 1 by courier or by email with delivery confirmation. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions remain in full force and effect. No waiver of any provision is effective unless made in writing; the failure of either Party to enforce any provision is not a waiver of its right to do so later.